

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 16, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Michael McCalmon vs. Northbay Healthcare Corporation
Case No. CU24-03200**

Dismissal Hearing

TENTATIVE RULING:

The dismissal hearing is continued to July 30, 2026 at 9:00 a.m. Class action counsel to file a declaration from the settlement administrator confirming all funds have been distributed and cy pres recipient is in actual receipt of funds and has negotiated the check or received the electronic transfer.

**Wells Fargo Bank N.A. v. Morena Nicdao
Case No. CL24-03545**

Motion to Set Aside/Vacate Dismissal and Enter Judgment per 664.6

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has

no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

CAPITAL ONE N.A. v JOHN N. BARRETT, JR.
Case No. CL25-03751

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Plaintiff's unopposed motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.

Defendant JOHN N. BARRETT JR.'s first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. He performed by paying a total of \$303.19 pursuant to the stipulation and then defaulted.

Plaintiff caused the motion to set aside the dismissal and to enforce the stipulation to be personally served on Defendant on May 26, 2026.

The court finds that Defendant had notice of these proceedings to enforce the settlement and authorizes entry of judgment in the amount of \$3,978.00 and awards costs in the sum of \$358.61 for a total judgment of \$4336.61.

The lodged proposed judgment will be processed forthwith.

JPMORGAN CHASE BANK N. A. v JESUS VIVEROS
Case No. CL25-09768

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Parties to appear. Defendant contends he made payments toward the stipulated amount of \$13,170.78 but neither party identifies what sums have been previously paid.

Plaintiff's motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.